

**ROYAL BOROUGH OF KENSINGTON AND CHELSEA
REPORT BY EXECUTIVE DIRECTOR,
PLANNING AND BOROUGH DEVELOPMENT**

APP NO. LB/14/03475 /Q23**Date: 30/07/2014**

This application is for a class of development which may be determined under powers delegated to the Executive Director, Planning and Borough Development. It is not an application which any Councillor has asked to be considered by the Planning Applications Committee.

RECOMMENDED DECISION: Grant listed building consent

SITE ADDRESS**30 Hornton Street, LONDON,
W8 4NR****APPLICATION 04/06/2014
DATED****APPLICATION 04/06/2014
COMPLETE****APPLICANT/AGENT ADDRESS****Mr Warren
Rawspace
22 Upper Mall
LONDON W6 9TA
Applicant Ms O'Shea**

<u>Listed</u>	Grade II	<u>Cons. Area</u>	Kensington	<u>Ward</u>	Campden
<u>Building</u>					
<u>CAPS</u>	Yes	<u>Eng. Heritage</u>	N/A	<u>Art '4'</u>	No
<u>Consulted</u>	<u>Objections</u>	<u>Support</u>	<u>Petition</u>	<u>Comments</u>	
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PROPOSAL: Alterations including blocking door opening, retain architrave and reinstall around adjacent doorway, remove wall and install shelf joinery and remove wall from chimney breast, form structural opening for door.

RBK&C Drawing No(s): LB/14/03475**Applicant's Drawing No(s): 104.001; 104.002; 104.003; 104.004; 001.001**

CONDITIONS AND REASONS FOR THEIR IMPOSITION

1. Compliance with drawings

The works forming the subject of this consent shall not be carried out except in complete accordance with the details shown on submitted plans **104.001; 104.002; 104.003; 104.004** and shall be so maintained.

Reason - In order to safeguard the special architectural or historic interest and heritage significance of the building .

2. Time limit

The works hereby granted shall be begun before the expiration of three years from the date of this consent.

Reason - As required by Section 18 of the Planning (Listed Buildings and Conservation Areas Act) 1990, to avoid the accumulation of consents.

3. Work to match retained fabric

All new works and works of making good to the retained fabric, whether internal or external, shall be finished to match the adjacent work with regard to the methods used and to colour, material, texture, and profile.

Reason - In order to safeguard the special architectural or historic interest and heritage significance of the building and comply with policy CL4 of the Core Strategy.

4. Retention of fabric

All existing fabric including existing wall and ceiling plasterwork shall be retained, unless notated otherwise on the drawings approved under this consent.

Reason - In order to safeguard the special architectural or historic interest and heritage significance of the building and comply with policy CL4 of the Core Strategy.

INFORMATIVES

- 1 You are reminded that, if not properly managed, construction works can lead to significant negative impacts on the local environment, reducing residential amenity and the safe function of the highway. No vehicles associated with the building operations on the development site shall be parked on the public highway so as to cause an obstruction. Any such wilful obstruction is an offence under Section 137 of the Highways Act 1980. The Council can prosecute developers and their contractors if work is not managed properly. For advice on how to manage construction works in the Royal Borough please see [Advice for Builders](#) on the Council's website; from this page you will also find guidance on what to include in Construction Traffic Management Plans (where these are required) which are very valuable instruments in limiting the impact of large scale building work.

- 2 You are advised that that construction and demolition work is controlled by the Council under Section 60 and 61 of the Control of Pollution Act 1974. In particular, building work which can be heard at the boundary of the site shall only be carried out between the following hours:

Monday to Friday - 08.00 to 18.30

Saturdays – 08.00 to 13.00

Sundays and Bank Holidays – No noisy works at all

Builders who undertake noisy work outside of these hours may be liable for prosecution and a fine of up to £5,000 where a notice has been previously served under the Control of Pollution Act 1974.

Your attention is drawn to Section 61 of the Control of Pollution Act 1974, which allows developers and their building contractors to apply for 'prior consent' for noise generating activities during building works. This proactive approach involves assessment of construction working methods to be used and prediction of likely construction noise levels at sensitive positions, with the aim of managing the generation of construction noise using the 'best practicable means' available. You are advised to engage an acoustic consultant experienced in construction noise and vibration assessment and prediction to complete your s.61 application. Relevant information can be found here [S.61 Control of Pollution Act 1974](#)

1.0 SITE

- 1.1 The premises are the basement and ground floor flat at 30 Hornton Street, which dates from the beginning of the 20th century. It is a 5 storey building in brick with stone dressings and is described as the final achievement of the Norman Shaw movement.
- 1.2 The premises have been listed Grade II since 1969 and are situated within the Kensington Conservation Area.

2.0 PROPOSAL

- 2.1 Consent is sought for internal alterations.

3.0 RELEVANT SITE HISTORY

- 3.1 A listed building consent application (LB/14/04258) was submitted in July 2014 for the removal of the existing fireplace surround at ground floor level and the installation of a new fireplace surround and it has not yet been determined.
- 3.2 Planning permission (PP/14/01505) and listed building consent (LB/14/01492) were granted on 1 May 2014 for internal alterations and refurbishment, removal of part of flank wall and formation of a 2 m² extension at basement level.
- 3.3 Permission was granted in January 1972 for the conversion of 30 Hornton Street into basement/ground and 3rd/4th floor maisonettes and 1st and 2nd floors into 2 flats.

4.0 PLANNING CONSIDERATIONS

- 4.1 The issues in the case are considered to be the effect upon the special architectural or historic interest of this Listed Building.
- 4.2 The Core Strategy of the Local Development Framework for the Royal Borough was adopted on December 8th 2010 and contains planning policies which have succeeded the majority of those in the Unitary Development Plan (UDP). For the purposes of S.38(6) of the Planning Compulsory Purchase Act 2004, the 'Development Plan' now comprises the Core Strategy, the London Plan (July 2011), plus relevant 'saved' policies from the UDP. The relevant policy of the Core Strategy for historic assets is CL4. The contents of the Government's National Planning Policy Framework have also been taken into account.
- 4.3 The London Plan forms part of the Development Plan for the Borough but no policies are considered of particular relevance to this case.
- 4.4 The Kensington Conservation Area Policy Statement is the Supplementary Planning Guidance.
- 4.5 Circular 01/2001 advises Local Authorities on the arrangements for handling heritage applications. English Heritage did not need to be notified of the application for Listed Building Consent under these arrangements and therefore the Council is authorized to determine it as it sees fit. The formal comment of the Council's Conservation and Design Officer on the proposals is as follows:-

"The basement and ground floor flat layout has been altered as a result of the

conversion of 30 Hornton Street into flats and maisonettes, but much historic character, including some plan form and historic fabric have been retained in this ground and basement level flat. Listed building consent and planning permission were granted earlier in 2014 for a refurbishment which included some changes to the front bedroom at basement floor level. The proposals that form this application are to amend the previously approved alterations to the front bedroom at basement level and to realign the double door opening previously approved in the spine wall at ground floor level in order to match the width of the historic opening found.

At basement level, the proposal is now to retain the doorway into the bedroom that is nearest the front elevation and not to block it up as previously approved. Instead, the other doorway into the front bedroom is to be blocked and the joinery reused in the retained opening. Neither doorway is thought to be in its original position because of the creation of the bathrooms in the centre of the plan and so this amendment would not harm the special architectural or historic interest of the listed building.

The proposal to remove the existing false wall across the recess of the chimney breast is welcome, as is the proposed reopening of the existing fireplace recess. It is considered that these would be to the benefit of the historic character of the room.

At ground floor the proposal to match the width of the historic opening that has been found in the spine wall is welcome and would contribute to the special architectural or historic interest of the listed building.

The proposals preserve the special architectural and historic interest of this Grade II listed building."

- 4.6 Accordingly, the proposed works would not conflict with Core Strategy policy CL4.

5.0 PUBLIC CONSULTATION

- 5.1 No adjoining properties were separately notified, but the application was advertised on site, by Notice on 4 July 2014 and in a newspaper on 20 June 2014.

- 5.3 No representations were received.

6.0 CONCLUSION

- 6.1 The proposals preserve the special architectural and historic interest of this Grade II listed building.

7.0 RECOMMENDATION

- 7.1 **Grant listed building consent**

**JONATHAN BORE
EXECUTIVE DIRECTOR, PLANNING AND BOROUGH DEVELOPMENT**

List of Background Papers:

The contents of file LB/14/03475 save for exempt or confidential information in accordance with the Local Government (Access to Information) Act 1985.

Alterations including blocking door opening, retain architrave and reinstall around adjacent doorway, remove wall and install shelf joinery and remove wall from chimney breast, form structural opening for door.

SUMMARY OF REASONS FOR DECISION

You are advised that this application for listed building consent was determined by the Local Planning Authority with regard to Development Plan policies in particular Policy CL4 of the Core Strategy within the Local Development Framework, as well as the policies and guidance presented in the National Planning Policy Framework, and was considered not to result in harm to the special significance of the building and to be in compliance with the relevant policies.

The London Plan was taken into consideration. No policies were considered of particular relevance to this application.

The proposals preserve the special architectural and historic interest of this Grade II listed building.

The full report is available for public inspection on the Council's website at <http://www.rbkc.gov.uk/LB/14/03475>. If you do not have access to the internet you can view the application electronically on the ground floor of the Town Hall, Hornton Street, London, W8 7NX.